

23STCV20321 23STCV20321

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-22

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Case Number: 23STCV20321 Hearing Date: July 22, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:15 PM on July 21, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 21, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiffs

allege that Defendants have failed to remediate habitability violations.

Defendants

Eddie Montes and Crystal Brianna Montes move to withdraw admissions and amend

deemed admissions.

TENTATIVE RULING

Defendants

Eddie Montes and Crystal Brianna Montes's motion to withdraw admissions and amend deemed admissions is DENIED.

ANALYSIS

Motion To Withdraw

Admissions and Amend Deemed Admissions

Defendants

Eddie Montes and Crystal Brianna Montes move to withdraw admissions and amend deemed admissions.

(a) A party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties.

(b) The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits.

(c) The court may impose conditions on the granting of the motion that are just, including, but not limited to, the following:

(1) An order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission.

(2) An order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission.

(Civ. Proc. Code § 2033.300 [bold emphasis and underlining

added].)

Notably, Code Civ. Proc., § 2033.300(b) requires a finding that the admission was the result of mistake, inadvertence or excusable neglect, before a finding on substantial prejudice is required. Neither the Declaration of Eddie Montes, nor of Crystal Brianna Montes, sets forth such circumstances.

Eddie Montes states in his
Declaration:

15. After prior
counsel withdrew, I was self-represented and attempting to respond to the case and discovery without legal training.

16. I understand that
the Court previously granted discovery-related relief, including the motion deeming Requests for Admission admitted and the motion to compel responses. I am not trying to ignore that history.

17. My delay and
confusion in discovery were not intended as disrespect to the Court. I was trying to gather documents, texts, inspection records, receipts, photographs, and other evidence to respond accurately.

18. I have now
prepared substantive responses and supporting facts. I respectfully request that the Court permit these issues to be decided on the merits rather than by deemed admissions or terminating sanctions.

(Eddie Montes Decl., ¶¶ 15 – 18.)

In
his Supplemental Declaration, Eddie Montes states:

3. I understand that the Court entered
an order on July 31, 2025 deeming Plaintiffs' Requests for Admission admitted and ordering monetary sanctions of \$285 against me and \$285 against Crystal Brianna Montes.

4. I do not dispute that my prior discovery compliance was deficient. My failure to serve timely responses was not an intentional decision to admit Plaintiffs' allegations, conceal evidence, delay the case, or obtain a tactical advantage.
5. After prior counsel withdrew, I was required to continue this litigation without legal training. I attempted to manage multiple discovery sets, court orders, repair records, photographs, inspections, contractor documents, and other case materials while supporting my household as its sole source of income.
6. My specific discovery mistake was that I focused an earlier cure effort on Plaintiffs' Special Interrogatories instead of the Form Interrogatories that were the subject of the Court's order. I did not understand that the correction attempted did not address the discovery set actually at issue.
7. I also did not understand that the Requests for Admission required separate responses and separate relief after they had been deemed admitted. I did not intend to concede the essential factual issues in this case.
8. Once I understood the distinction between the discovery sets and the consequences of the deemed admissions, I prepared and served corrected verified Form Interrogatory responses and substantive proposed responses to the Requests for Admission.
9. The proposed responses state my actual positions based on the evidence available to me. They are not being offered to create a new defense, but to allow the case to be decided on the facts and evidence rather than by procedural default.
10. I acknowledge that there was a substantial delay. The delay resulted from confusion, lack of legal training, financial strain, and my unsuccessful attempt to cure the wrong discovery set. It was not the product of bad faith or willful disobedience.
11. I paid approximately \$13,000 for prior legal representation. After counsel withdrew, I had to continue the case on my own while also paying for repairs, contractors, pest- control services,

utilities, and other property expenses.

12. I am the sole source of income for a household of four. The combined financial burden of this litigation, continuing repair expenses, credit-card obligations, personal loans, and ordinary household expenses brought me close to considering bankruptcy.

(Supplemental Declaration of Eddie Montes, ¶¶ 3 – 12 [bold emphasis added].)

Crystal

Maria Montes states in her Declaration:

13. I understand that the Court previously granted discovery-related relief, including the motion deeming Requests for Admission admitted and the motion to compel responses. I am not ignoring that history.

14. To the extent my discovery responses were delayed, that delay was not intended as willful defiance. I was not the person managing the property throughout the earlier tenancy period, and I had to gather information from records, communications, and other sources to respond accurately.

15. I support allowing full verified responses to be served and considered so that the case can be resolved on the actual facts and merits rather than by technical default.

(Crystal Maria Montes Decl., ¶¶ 13 – 15.)

In

her Supplement Declaration, Crystal Brianna Montes states:

4. The failure to serve timely responses was not an intentional decision to admit

Plaintiffs' allegations, abandon my defenses, or obtain any tactical advantage.

5. During the relevant period, Eddie

Montes and I were attempting to manage this

litigation without legal training while

dealing with multiple sets of written discovery, court orders, repair issues at the property, and substantial financial and family responsibilities.

6. I did not understand that the

Requests for Admission required separate and timely responses and that failing to respond could result in the requests being deemed admitted.

7. I also did not understand that

serving or attempting to cure a different discovery set would not correct the separate Requests for Admission issue.

8. Once the procedural problem was

understood, substantive responses to the concerning the disputed facts in this case.

9. I did not intend to admit

allegations that I dispute, including allegations concerning the condition of the property, repair efforts, responsibility for damage, occupancy, access, inspections, and other central issues.

(Supplemental Declaration of Crystal Maria

Montes, ¶¶ 4 – 9 [bold emphasis added].)

The

gist of Defendants' explanations are that they are in pro per and did not fully understand discovery procedures. This is insufficient to justify relief:

Bruntz, however, was not exempt from the foregoing rules

because she represented herself during the litigation. (Citation omitted.)

A party who chooses to act as his or her own attorney “is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys. [Citation.]” (Citation omitted.) “Thus, as is the case with attorneys, pro. per. litigants must follow correct rules of procedure.” (. . . see *Bistawros v. Greenberg* (1987) 189

Cal.App.3d 189, 193 [234 Cal. Rptr. 377] [self-represented party “held to the same restrictive procedural rules as an attorney”].)

(Stover v.

Bruntz (2017) 12 Cal.App.5th 19, 31.)

As such,

Defendants have not demonstrated that the admissions were the result of mistake, inadvertence, or excusable neglect. The Court need not address substantial prejudice to Plaintiffs. The motion to withdraw admissions and to amend admissions is DENIED.